AFFIDAVIT

STATE OF: ARIZONA

COUNTY OF: MARICOPA

I, Kevin Turnage, make the following statement freely and voluntarily to Karen Dawkins who has identified herself as a Contract Investigator for the Department of Health and Human Services, Indian Health Service ("the Agency"). I understand that this statement is not confidential and may be shown to the interested parties (those with a legal right to know). I understand that this statement may be used in evidence.

Claims to be investigated:

Complainant is alleging harassment by Kevin Turnage in work assignments and his failure to honor her reasonable accommodation. Specifically, Complainant alleges that:

1. **Mr. Kevin Turnage, Supervisory Nurse, makes assignments based on racial preference. Specifically:**

    a. **Mr. Turnage does not assign a Caucasian Contract Registered Nurse, Arlene Frost to work in Respiratory Swab Rotation.**
    b. **Ms. Frost is not assigned Nurse Triage/Assessment duties**

2. **Mr. Turnage is disregarding her approved reasonable accommodation.**

Q1. Please state and spell your name.

A1. My name is Kevin Turnage.

Q2. Do you have a representative with you today? If so, please identify.

A2. No, I do not have a representative with me today.

Q3. What is your position title, series, grade, agency, and office? Please spell out all acronyms.

A3. My position title is Supervisory Clinical Nurse, GS-610 Grade 12 step 9. I work in the IHS, Primary Care, Employee Health and Behavior Health Unit.

Q4. How long have you worked in your current position?

A4. I have worked in my current position since March 28, 2022.

Initials KT

Q5. How long have you worked for the Agency?

A5. I have been on board with the Agency since July 9, 2017.

Q6. Please state and spell the name of your first level supervisor.

A6. My first level supervisor is Jason White.

Q7. What is his position title, series, grade, and position in the organization?

A7. Mr. White is the Acting Ambulatory Assistant Chief Nursing Officer. I do not know his grade level for sure; he could be a GS-610 13 or 14.

Q8. How long have you worked under the supervision of your current supervisor?

A8. I have worked under his supervision for 10 months.

Q9. Please state and spell the name of your second level supervisor.

A9. My second level supervisor is Candace Lee.

Q10. What is her title, series, grade, and position in the organization?

A10. Ms. Lee is a 610-GS-14 Chief Nursing Officer.

Q11. How would you describe your work relationship with Complainant? e.g. friendly, cordial, professional, etc?

A11. I rarely see Complainant, primarily because she works in a different building than I do. We have always been cordial. However, I have always walked on eggshells when it comes to her. Complainant is known for filing formal complaints against her supervisors. I am told in the last several years many of her peers have complained of being harassed by her. Specifically, since I have been in the position the other three clinical care coordinators have filed hostile work environment claims against the complainant. Every management directive I have given her has been met with an informal EEO complaint and now a discrimination complaint.

Claim 1. Mr. Kevin Turnage, Supervisory Nurse, makes assignments based on racial preference. Specifically:

a. Mr. Turnage does not assign a Caucasian Contract Registered Nurse, Arlene Frost to work in Respiratory Swab Rotation.
b. Ms. Frost is not assigned Nurse Triage/Assessment duties

Initials KT

Q1. How many Contract Register Nurses (RNs) do you directly supervise?

A1. I supervise one Contract Registered Nurse.

Q2. What is her full name?

A2. Her name is Arlene Frost.

Q3. How many Registered Nurses do you supervise who are not contract RNs? Are these RNs Federal employees?

A3. I supervise eight non-contract RNs.

A4. What are their full names?

1	Tonie Greve	5	Dawn Barnett
2	Elizabeth Hill	6	Kristin Frazelle-Trout
3	Bertha Edison	7	April Scott
4	Brenda Barr	8	Krista Killins

Q5. How long have you supervised Arlene Frost, Contract RN?

A5. I have supervised Ms. Frost since March 28, 2022; she was on board when I began employment here.

Q6. Are all RNs expected to perform the same duties, regardless of their status as Federal Employees or Contract Employees. If no, explain why they may perform different duties.

A6. I assign Contract employees duties based on what is written in the Statement of Work of the Contract on which they are hired. I was informed by the Chief Nursing Officer, Candace Lee, that Contract Nurses were not allowed to do lab collections, which was my reason for not adding her to the rotation. I conveyed this information to Complainant in an email.

Q7. Respond specifically to Complainant's claim that Ms. Frost is not required to perform rotational assignments and she is not required to perform triage assignments.

A7. That is not true. It is my understanding that Ms. Frost is not permitted according to contract to labs. She is however contracted specifically to work triage and assessments.

Q8. If Complainant's allegations are true, explain why Ms. Frost is not required to perform these duties.

Initials KG

A8. Complainant's allegations are definitely not true. Refer to my previous responses.

Q9. Have you supervised Contract RNs in the past who have performed the same duties as Federal RNs? If so, explain.

A9. My position here begins my Supervisory career. I have not managed any other Contract or Non-Contract individuals prior to March 28, 2022.

Q10. Please respond to Complainant's allegation that you make assignments to Ms. Frost based on your preference for White employees.

A10. As I have stated in every email to Complainant, I do not take anyone's race into consideration when making assignments. Everyone is treated the same. I welcome anyone to come in and speak to my staff about me regarding this issue. I have made no assignments based on race. When I assign duties, I consider their scope of practice and what is allowable according to the contract (for contract employees). The only thing that was used to determine the rotation was whether they were full-time employees and in the case with Ms. Frost, according to what her contract allowed.

Claim 2. Mr. Turnage is disregarding her approved reasonable accommodation.

1. Are you aware of a reasonable accommodation that was previously approved for Complainant.

   As far as I have been told, the Agency does not have an agreed upon reasonable accommodation for Complainant. The Agency's EEO office has a request signed by the doctor and is very vague. Ms. Grebe sent an email on June 15, 2022 at 15:09 to myself, Rebecca Carrillo, Carolyn Tapahe and Candace Lee. In the e-mail, she states she has ADHD. This was the first time I heard anything about a reasonable accommodation. Therefore, I included the EEO Manager at the Phoenix Area Office Mr. George Patton. Mr. Patton responded "Mr. Turnage:
   I see where Ms. Greve submitted form HHS-813 requesting a reasonable accommodation. I don't see however that form HHS-814, which is the form used to approve a reasonable accommodation has been submitted. At the time of Ms. Greve's reasonable accommodation request, CDR Dickerson was Ms. Greve's supervisor. Are you available this morning to discuss Ms. Greve's request and moving forward with next steps for her reasonable accommodation request. I'm available now until 11:00 am and from 1:00 – 3:30 pm. Thanks and I look forward to hearing from you. Take care."

   He also sent me a copy of the HHS-813 Confirmation of Request for Reasonable Accommodation dated 02/21/2022 signed by a Dr. Earl Labovitz who stated in the Accommodation Requested section "Employee to spend majority of work day doing her clinical care duties. Limited interaction with triage + patient care due to being immunocompromised. In the Reason for Request section "Asthma and Immunocompromised is listed" There is also a written statement by Ms. Greve. I did

Initials KG

meet with Ms. Greve and she stated that she could not do triage because the fragrance in the room. I told her she could use another exam room to do triage, to which Ms. Greve verbally agreed. I also ensured that there all air fresheners and scents were removed from the triage room. I emailed Ms. Greve what I was provided and sent her the necessary documents needed for a Reasonable Accommodation on June 22, 2023 through secure e-mail and again on June 23, 2022 through regular e-mail as she stated she had trouble retrieving the documents through secure e-mail. I never received a response or any completed forms from this e-mail. I again asked Ms. Greve verbally on July 15, 2022 and emailed her the forms again on October 17, 2022 and I have not received any response or forms. I have offered to assist the employee numerous times and the employee has never sent any forms or responses to offers to assist her with the reasonable accommodation process.

2. If so, when and how did you become aware of the reasonable accommodations?
    a. Please see response to Claim 2 Question 1.
3. Briefly, what is your understanding of the terms of Complainant's approved reasonable accommodation.
    a. I am unaware of any agreed/approved Reasonable Accommodations.
    b. Please see response to Claim 2 Question 1.
4. Respond to Complainant's allegation that you disregard her approved reasonable accommodations.
    a. I am unaware of any Reasonable Accommodations.
    b. Please see response to Claim 2 Question 1.

3. General Harassment Questions

1. Has Complainant ever complained to you, or otherwise informed you, that she believes you are subjecting her to harassment?
    a. On a regular basis if a process changes or she is assigned an additional duty she claims it is bullying and harassment.
2. If so, when and what specifically did she complain about?
    a. States additional duties or position duty changes are bullying and harassment even if assigned to all CCC's not just her.
3. What was your response? Did you take any corrective action? If so, explain.
    a. Each time I provide a response explaining the business/management decision to make a change and that a position description does not list every duty that maybe assigned
4. Have you received anti-harassment training while employed by the agency? If so, when?
    a. Yes annually.
5. Is this training mandatory for all employees? If so, how often?
    a. Yes annually.
6. To the best of your knowledge, what are you supposed to do if you believe that you have been harassed?
    a. Notify your supervisor or Human Resources.
7. Can you suggest witnesses who can provide relevant information? If yes, identify by name, title, and nature of information they will attest to.

Initials PT

a. Other than people already listed I cannot provide any additional witness information.

8. Is there anything you would like to add into the record?
   a. There have been numerous claims of harassment and hostile work environment against the complainant. Including a written document from a previous employee on 7/21/2021 from Maryam Nastassia Janes who listed harassment and bullying by the complainant as the reason for leaving Federal employment at the Phoenix Indian Medical center. I can provide her written statement if requested.
   b. The agency leaves other employees in a hostile work environment to be bullied and harassed by the complainant because she files so many complaints and EEO's they refuse to do anything to the complainant for fear she will claim retaliation, therefore she is never disciplined.
   c. Complainant's documented HHS-813 request means the employee no longer meets the requirements for her position since she requested no patient contact, since her PD states that clinical care coordination is 75% of her duties and those duties require patient contact in order to complete and meet the requirements of a clinical care coordinator.

I have read the forgoing Affidavit consisting of 6 page(s) and I hereby attest under penalty of perjury that it is true and correct to the best of my knowledge and belief. I have signed or initialed each page. I have been given the opportunity to make any corrections and/or additions, which I have submitted.

Kevin Turnage

12/22/2022

Date

**********NOTHING BELOW THIS LINE**********

Initials KT